“FROM 2021 ONWARDS, THE CENTRE HAS SYSTEMATICALLY ALTERED NOTIONS THAT PLATFORMS HAD NO ACCOUNTABILITY AND IT’S A FREE-FOR-ALL”



certainly make it very clear to echo and amplify the PM’s message that this is an issue that cannot be dealt with in a lethargic manner. We have to have a sense of urgency. We have to have a sense of purpose and we have to have a sense of real, clear outcomes in terms of what technology, what tools will be deployed and what the regulatory framework of accountability will be. All of that should become very clear in the coming weeks.

Q. The other point the prime minister made was to get social media to label deepfakes.

That is an interesting problem platforms will now have to solve. The problem with these platforms is that they have enjoyed almost a perfect storm of being unaccountable. One is the safe harbour clause, and the second, interestingly, is that they allow anonymous use of their platforms. They say that ‘we are not responsible’ but, at the same time, they allow anonymous use of the platform. So, it was like a very interesting place in cyberspace or in the internet world where laws could not reach and bad behaviour would have no consequences. That has been changed. We are saying bad conduct and bad actions will have consequences. Deepfakes certainly characterise and qualify as being an extremely visible way of demonstrating bad conduct and bad actions. So, either they will get prosecuted for the deepfakes, or they will put in place a system of doing more due diligence of who their users are. This may include platforms telling users, as terms of service, we mandate that when you make a modified video, you label it. If they don’t do that, then it is their neck on the line. So, in a sense, through our rules and laws, we are incentivising good behaviour, good conduct on the part of the platforms and, hopefully, making and urging and nudging these platforms to ensure that they are able to track what the users do and label and flag bad conduct by the users. Currently, you know, it’s a free-for-all. They enjoy all the revenues, the scale and the size. And they believe they don’t have any accountability. That, since 2021, has been very systematically altered.

Q. What about modifying the law on deepfakes?

Deepfakes represent misinformation that will be dealt with by a law down the road called the Digital India Act, which is going through its own review currently. And that Digital India Act is certainly going to be a successor of the IT Act of 2000. It will be much more contemporary, much more aligned with tackling these modern challenges on the internet, the diversity and the complexity of the intermediaries on the internet and the challenges of emerging modern technology.

Q. And when will this new digital law be enacted?

The prime minister has always said that we don’t do legislation in a hurry, but we will certainly take it through the process of consultation. We have done at least three rounds of pre-consultation. There is a lot of consensus around what we have put together as a framework in terms of innovation, growing the digital economy as well as addressing some of these challenges that are coming up in the coming years through AI and other sectors. So, certainly, new legislation is around the corner.

Q. What are the things you are looking to change in the forthcoming IT Act?

When the IT Act came into being, the internet was a very innocent place. It was a place where techno-optimism was the norm. We saw this as a place for doing good. We saw this as a means of connecting people, access to information. But the internet in the past 10-15 years has become as much a place for good and enablement and empowerment as a place for bad and harm and exploitation and cybercrimes, and so on and so forth. That law was constructed in a pre-modern internet era and certainly needs a new successor act. What are the criteria in this new act? There are many things. The internet is far more complex and diversified today. You have e-commerce, social media and AI platforms. Citizens today are seeking more and more safety and trust, and they need more rights. Our laws to regulate these need to be nimble and fleet-footed, a more contemporary approach that will be the framework for the next 10 years, that is pro-innovation, pro-user and pro-citizen safety. And I hope we will deliver it soon. ■